

Public Office (Accountability) Bill

AMENDMENTS

TO BE MOVED

IN COMMITTEE OF THE WHOLE HOUSE

[Supplementary to the Marshalled List]

**Amendment
No.**

Clause 2

LORD KEEN OF ELIE
LORD WOLFSON OF TREDEGAR

6A★ Clause 2, page 2, line 39, at end insert —

“(4A) The duties in subsections (3) and (4) do not apply when an inquiry relates to an issue where more than 100 individuals have been affected by that issue.”

Member's explanatory statement

This probing amendment seeks to set out a limit for the size of inquiry the requirement for notification applies to, where it would be impractical for all witnesses to come forward.

Schedule 2

BARONESS JONES OF MOULSECOOMB

66A★ Schedule 2, page 53, line 17, at end insert —

“(14) Subject to sub-paragraph (2), “public official” also includes a member of either House of Parliament, the Scottish Parliament, Senedd Cymru or the Northern Ireland Assembly.

(15) Section 5 and section 12 do not apply to —

- (a) anything said or done by any person in proceedings of any Parliament or legislative assembly in the United Kingdom, or
- (b) any expression of an honestly held political belief or opinion by a member of either House of Parliament, the Scottish Parliament, Senedd Cymru or the Northern Ireland Assembly.

(16) For the purposes of sub-paragraph (2) and section 12, a person within sub-paragraph (14), the Mayor of London, a mayor for the area of a combined authority or combined county authority, a Minister of the Crown, a member of the Scottish Government, a junior Scottish Minister, a member of the Welsh

Government or a Minister or junior Minister within the meaning of the Northern Ireland Act 1998 is treated as acting in their capacity as a public authority or public official, as applicable, and exercising their functions as such when communicating with the public, by any means, about matters of significant concern to the public, including public policy, national security, public expenditure, the allocation of public assets or resources, legislative or democratic processes, and the environment. This sub-paragraph does not apply to communications made in a judicial capacity or concerning solely a person's private life, family life or private business.

- (17) In relation to a communication to which sub-paragraph (16) applies and for the purposes of section 12(3)(b), "harm" also includes undermining the confidence of the public in public authorities, public officials, the exercise of public functions or democratic processes. Such harm may arise, in particular, where the communication is made for the purpose of –
- (a) taking the United Kingdom to war or into other military action,
 - (b) influencing the result of an election,
 - (c) influencing the result of a referendum,
 - (d) concealing the causes of, or responsibility for, a disaster or other event involving death or serious injury,
 - (e) concealing a risk to public health or safety, or
 - (f) concealing wrongdoing by a public authority or public official, including a breach of the law or of rules, or the misuse of public money.
- (18) In sub-paragraphs (16) and (17), "the public" has the same meaning as in section 12."

Member's explanatory statement

This amendment would include members of the UK's four legislatures within the duty of candour and offence of misleading the public, safeguard parliamentary privilege and political opinion, treat certain communications by legislators, Ministers and mayors as official, and treat undermining public confidence, including over war, elections and referendums, as harm.

BARONESS COFFEY

69A★ Schedule 2, page 54, line 12, leave out paragraph (b)

Member's explanatory statement

This amendment, and another in the name of Baroness Coffey, seeks to probe the application of the Bill to Parliament.

After Clause 20

LORD KEEN OF ELIE
LORD WOLFSON OF TREDEGAR

125A★ After Clause 20, insert the following new Clause –

“Review

The Secretary of State must, within two years of the day on which this Act is passed, lay before Parliament a review of the impact and effectiveness of the measures contained in this Act.”

Member's explanatory statement

This amendment seeks to include a post-legislative review of the Act after two years.

LORD WILLS

This amendment is intended to replace Amendment 116

125B★ After Clause 20, insert the following new Clause –

“Standing advocate: power to instigate duty of candour fact-finding inquiry

In the Victims and Prisoners Act 2024, before section 41 insert –

“40A Standing advocate: power to instigate duty of candour fact-finding inquiry

(1) Where the standing advocate –

- (a) has reasonable grounds to believe that, in relation to a major incident, a public authority or public official has not performed their functions with candour, transparency and frankness, and in the public interest, as required by the Public Office (Accountability) Act 2026, and
- (b) judges that a majority of the victims of a major incident are in favour of a fact-finding inquiry,

the standing advocate may request the Secretary of State to set up, as soon as is reasonably practicable, a fact-finding inquiry.

(2) The Secretary of State must, within 14 days of receiving a request under subsection (1), decide whether to set up the inquiry, and must do so if he or she considers that the inquiry would be in the public interest.

(3) In deciding whether the inquiry would be in the public interest, the Secretary of State must have regard to the interests of the victims of the major incident, including –

- (a) the need for a timely establishment of the facts,
- (b) the likely cost of the inquiry,
- (c) the public interest in transparency and accountability,
- (d) the emotional distress of the victims, and
- (e) the financial interests of the victims.

- (4) Where the Secretary of State does not set up a fact-finding inquiry following a request under subsection (1), the Secretary of State must, as soon as reasonably practical –
 - (a) provide the standing advocate with written reasons for the decision, and
 - (b) make a statement to Parliament setting out those reasons and why an inquiry is not in the public interest.
- (5) The Secretary of State must provide sufficient resources for any fact-finding inquiry established under this section, including sufficient levels of secretarial and financial support to allow an inquiry to be established quickly and maintained adequately.
- (6) The Secretary of State must lay before Parliament an annual report on the use of resources provided under subsection (5).
- (7) The fact-finding inquiry established under this section may –
 - (a) require a public authority or public official to provide documents, information or other material relevant to the inquiry,
 - (b) make findings in relation to the matters under investigation, and
 - (c) publish a report containing those findings and any recommendations arising from them.
- (8) A public authority or public official who is required to provide documents, information or other material under subsection (7)(a) must comply with that requirement.
- (9) A failure by a public authority or public official, without reasonable excuse, to comply with subsection (8) is to be treated as a failure to comply with section 2 of the Public Office (Accountability) Act 2026.”

Clause 27

LORD KEEN OF ELIE
LORD WOLFSON OF TREDEGAR

147A★ Clause 27, page 27, line 16, at end insert –

“but section 12 does not come into force until the Secretary of State has published and laid before Parliament an impact assessment of the impact of the offence under section 12 on free and frank public debate where vexatious complaints are made to the police.”

Member's explanatory statement

This probing amendment seeks to include an impact assessment for the risk that clause 12 be used in a political tit-for-tat manner between different political parties.

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9 October 2026
